

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #05	CCRB Case #: 201802176	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 03/14/2018 1:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/14/2019	Precinct: 72		
Date/Time CV Reported Wed, 03/14/2018 9:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/20/2018 11:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Eric Kmiotek	26509	952940	072 PCT
2. POF Dacia Webb	18091	959361	072 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Eric Kmiotek	Abuse: Police Officer Eric Kmiotek refused to provide his shield number to § 87(2)(b)	A . Unsubstantiated
B . POF Dacia Webb	Abuse: Police Officer Dacia Webb refused to provide her shield number to § 87(2)(b)	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On March 14, 2018, § 87(2)(b) filed this complaint with IAB over the phone. On March 20, 2018, it was received at the CCRB.

On March 14, 2018, § 87(2)(b) called 911 to report that she had lost her English to Chinese dictionaries. PO Eric Kmiotek and PO Dacia Webb of the 72nd Precinct responded but refused to file a report for § 87(2)(b). § 87(2)(b) asked both officers for their shield numbers and they provided the stationhouse phone number instead. § 87(2)(b) again requested their shield numbers and they refused to provide them (**Allegation A – Abuse of Authority, unsubstantiated; Allegation B – Abuse of Authority, unsubstantiated**). § 87(4-b), § 87(2)(g)

There are no video recordings of this incident.

Findings and Recommendations

Allegation A - Abuse of Authority: Police Officer Eric Kmiotek refused to provide his shield number to § 87(2)(b)

Allegation B - Abuse of Authority: Police Officer Dacia Webb refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) who is a Mandarin speaker, testified that when PO Kmiotek and PO Webb responded to her apartment regarding her lost dictionaries, they refused to file a report for her. § 87(2)(b) then requested PO Kmiotek and PO Webb's shield numbers multiple times, stating, "You no help me, can you give me the ID number." PO Kmiotek wrote down the phone number to the 72nd Precinct stationhouse. Both officers refused to provide their shield numbers and only pointed to the written phone number and stated, "Call here." § 87(2)(b) replied, "No, your number, this a phone number." § 87(2)(b) was sure that the officers heard her request for their shield number as she repeated it multiple times. The officers knew that she was requesting their shield numbers, and not the complaint report number or the stationhouse phone number, as she repeated the request multiple times for their ID numbers and told them that she had the stationhouse phone number. PO Kmiotek responded, "Only this number for you."

PO Kimotek stated that § 87(2)(b)'s English was not perfect, but that he was able to understand her. § 87(2)(b) did not request PO Webb's or PO Kmiotek's shield number. At one point, § 87(2)(b) pointed at PO Kmiotek and then at her phone and said "number." PO Kmiotek understood this to mean that she wanted the phone number to the stationhouse. PO Kmiotek took a paper that § 87(2)(b) had and wrote down the 72nd Precinct stationhouse phone number and address. § 87(2)(b) did not request their shield numbers. § 87(2)(b) seemed satisfied with the 72nd Precinct stationhouse's information. § 87(2)(b) did not continue to point at PO Kmiotek after receiving the information. § 87(2)(b) did not make the statement, "No, this a phone number, I want your number." PO Kmiotek did not point to the 72nd Precinct stationhouse's phone number and tell § 87(2)(b) that it was the only number that she would get. PO Kmiotek stated that had she asked for his shield number that he would have provided the information and one of his contact cards.

PO Webb's statement was consistent with PO Kimotek's.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. **(Board Review 03)**
- PO Webb has been a member of service for two years and this is the first CCRB complaint in which she has been a subject.
- PO Kmiolek has been a member of service for two years and this is the first CCRB complaint in which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- On June 15, 2018, an inquiry was filed with the New York City Comptroller's Office to locate a notice of claim for § 87(2)(b) Results are pending. **(Board Review 04)**
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 05

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date